



FEDERAL BUREAU OF INVESTIGATION

CJIS Division/Resources Management Section/Facilities Management Unit



JUSTIFICATION AND APPROVAL (J&A) FOR OTHER THAN FULL AND OPEN COMPETITION

JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION IN ACCORDANCE WITH:
41 U.S.C. § 3304(a)(1) as implemented by the Federal Acquisition Regulation (FAR) Subpart 6.302-1 entitled, "Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements."

Date: 2/23/2025

1. Identification of the agency and contracting activity.

The U.S. Department of Justice, Federal Bureau of Investigation, CJIS Division's Facilities Management Unit (FMU), has prepared this justification for other than full and open competition for the CJIS Division's ABB Electrical Equipment Maintenance and Emergency Services on behalf of the same (CJIS Division's FMU).

2. The nature and/or description of the action being approved, i.e., sole source, limited competition, establishment of a new source, etc.

The CJIS Facilities Management Unit (FMU) intends to award a sole source, firm fixed priced, contract ((One (1) Base Year with Four (4) 1 Year Options)) for ABB Electrical Equipment Maintenance and Emergency Services to area authorized distributor, State Electric Supply Company, (Unique Entity ID: KEW4XMD5NH53) located at 2010 Second Ave, Huntington, WV, 25703.

The technical and maintenance services will be performed on the CJIS Campus power distribution components such as switchgear, breakers, transformers, protective devices, backup generators and distribution control systems. All work will be performed on the CJIS's Campus located at the Federal Bureau of Investigation (FBI) in Clarksburg, WV.

The ABB Electrical Equipment Maintenance and Emergency Services, to be performed by ABB for the CJIS Campus Electrical Equipment Maintenance and Emergency Services is being submitted as a Sole Source procurement because ABB is the Original Equipment Manufacturer (OEM) and they maintain access to proprietary updates and changes, knowledge of engineering specifications, current issues and understand how to master the deficiency correctly on ABB power distribution systems and components. The required maintenance applications and service configuration utilities are proprietary to ABB and exclusively available by area dealer representative.

3. A description of the supplies or services required to meet the agency's needs.

This service contract will include emergency and preventative tasks for CJIS's power distribution systems and components. Throughout the CJIS Campus power distribution

systems and components delivers power to buildings and equipment. Routine maintenance is essential to maintain consistent and highly reliable power distribution system.

The power distribution systems mainly consist of voltages from 12.47k Volts to 480 Volts. The preventive maintenance for 2025 will be performed at the CJIS Central Utilities Plant. The preventive maintenance task will include the switchgear enclosures and breakers. All breakers shall be removed from the energized switchgear for visual inspection, electrical and mechanical testing. Observations and data shall be documented with any discrepancies from the Original Equipment Manufacturer (OEM) specifications noted. Any corrective actions required to restore switchgear and breakers to OEM specifications shall be documented.

All required safety equipment, test equipment, tools and materials shall be provided. ABB shall have all parts and components that are frequently replaced during the preventative maintenance task. All parts and replacement component shall be supplied from the OEM. Any non-OEM parts or components will require approval from the FMU Staff. Parts replacements, not include in contract for normal maintenance, will require a quotation and approval by FBI Contracting Officer before installation.

This contract will also cover emergency, corrective and preventative maintenance will be conducted on, not limited to, the following equipment:

1. Switchgear Enclosures and Busways.
2. Switchgear Local Controls, Automated Control Systems, Touch Screens and peripherals.
3. Switchgear Control Power Supplies and Backup Systems.
4. Transformers, including protection devices, cooling devices, monitoring systems and oil analysis.
5. Central Utilities Plant Backup Generator Controls and Control System.
6. Power Monitoring and Data Collection Systems.
7. Power Distribution Control Systems.
8. Replacement parts and components.

The power distribution systems are located in multiple areas throughout the CJIS Campus. All emergency and preventive maintenance shall be scheduled and coordinated with the appropriate CJIS Facilities Management Authority.

4. The statutory authority permitting other than full and open competition.

The statutory authority permitting other than full and open competition is 41 U.S.C.253(c)(1)(or 10 USC 2304(c) (1)) as implemented by the Federal Acquisition

Regulation (FAR) Subpart 6.302-1 entitled, "Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements."

5. Demonstrate the unique qualifications of the proposed contractor or the nature of the action requiring the use of the authority.

The CJIS Facilities Management Unit (FMU) is requesting a Five-Year Contract (One (1) Base Year with four (4) 1 Year Options) for ABB Electrical Equipment Maintenance and Emergency Services for the CJIS Campus power distribution systems and components. The technical and maintenance services will be performed on the CJIS Campus power distribution components such as switchgear, breakers, transformers, protective devices and distribution control systems. All work will be performed on the CJIS's Campus located at the Federal Bureau of Investigation (FBI) in Clarksburg, WV.

ABB is the Original Equipment Manufacturer (OEM) and they maintain access to proprietary updates and changes, knowledge of engineering specifications, current issues and understand how to master the deficiency correctly on ABB equipment. The Maintenance Documentation and configuration utilities are proprietary to ABB and is not available to other sources.

CJIS Campus ABB Electrical Equipment Maintenance and Emergency Services must be compatible in all aspects with existing systems presently installed on the CJIS Campus. The current equipment is specific to the CJIS Campus power distribution systems and the requested emergency maintenance and preventive maintenance services must coordinate and interface with the existing system. Due to ABB proprietary information, ABB factory-authorized trained Engineers are required to provide maintenance and emergency services to the power distribution system and components.

Reliable electrical service to CJIS's is critical to ensure all of the continuous operations and business demands stay in service. All of the critical and non-critical equipment that supports CJIS's customers are feed by the CJIS Campus power distribution systems. A failure due to improper maintenance will results in a possible shutdown of the CJIS's Campus and Data Centers or any services supported by the CJIS Campus Teams.

With proper preventive maintenance by properly trained and skilled technical support staff, the power Distributions systems will continue to operate and provide the CJIS Campus with uninterrupted electrical service. The objective is supply CJIS's services with 100% electrical availability 24/7. With reliable electric service CJIS's can continues to fulfill their mission "To equip our partners with the criminal justice information they need to protect the United States while protecting civil liberties" as well as the FBI mission, "To protect the American people and uphold the Constitution of the United States."

6. A description of efforts made to ensure that offers are solicited from as many potential sources as is practicable, including whether a notice was or will be publicized as required by Subpart 5.2 and, if not, which exception under 5.202 applies.

During the Market Research process, a review of the GSA Schedules identified common electrical maintenance providers. The published service rates were comparable to the furnished ABB rates. However, the common electrical maintenance providers are deficient in the technical aptitude required to sufficiently service the CJIS Campus's GE equipment. The ABB Field Service Engineers receive specialized training in the operations and maintenance of the ABB equipment. The sophisticated control systems and protective devices require certain access privileges to perform maintenance tasks. It is extremely important to be conscientious while operating in these maintenance modes. In the hands of an untrained operator or engineer there is an increased risk of human performance errors resulting in unplanned power outage or major equipment damage.

From previous work experiences with the CJIS Campus ABB equipment, it is a requirement that an ABB Field Service Engineer perform any modifications or maintenance to the CJIS ABB equipment. The area ABB sales representative is State Electric Supply in Clarksburg WV. There are no substitutes. In accordance with FAR 5.2, notice (including a copy of this document) will be posted to SAM.gov considering the proposed contract action does not meet exceptions described in 5.202.

7. A description of the market research conducted and the results.

ABB services is uniquely qualified to provide parts and services to the FBI CJIS Division based upon the following:

The equipment in which the FBI requires service/maintenance for, are proprietary products of ABB. ABB and its authorized regional factory representative are the only entities who are able to provide OEM parts and service for ABB power distribution systems and components. ABB has the test equipment and proprietary configuration utilities that are required to properly maintain and repair an ABB power distribution systems and components.

No other Vendors for the required service and supplies will be sufficient.

8. Any other facts supporting the use of other than full and open competition.

The CJIS Division's Facilities Management Unit is requesting ABB Electrical Equipment Maintenance and Emergency Services for the CJIS Campus power distribution system and Components. The specific characteristics of the CJIS Campus power distribution system and components limit the availability to a sole source because maintenance and repairs must be

conducted by factory-authorized trained Engineer on the ABB. The required maintenance applications and service configuration utilities are proprietary to ABB and exclusively available through area dealer representative.

Reliable electrical service to CJIS's is critical to ensure all of the continuous operations and business demands stay in service. All of the critical and non-critical equipment that supports CJIS's customers are feed by the CJIS Campus power distribution systems. A failure due to improper maintenance will results in a possible shutdown of the CJIS's Campus and Data Centers or any services supported by the CJIS Campus Teams.

With proper preventive maintenance by properly trained and skilled technical support staff, the power distribution systems will continue to operate and provide the CJIS Campus with uninterrupted electrical service. The objective is supply CJIS's critical services with 100% electrical availability 24/7. With reliable electric service CJIS's can continues to fulfill their mission "To equip our partners with the criminal justice information they need to protect the United States while protecting civil liberties" as well as the FBI mission, "To protect the American people and uphold the Constitution of the United States."

9. A listing of any sources that expressed a written interest in the acquisition.

N/A

10. A statement of any actions the agency may take to remove or overcome any barriers to competition, if subsequent acquisitions are anticipated.

FMU will continue to research for alternatives to maintain and service the ABB power distribution systems and components that are verified, authorized, and approved maintenance providers by the ABB. FMU will also be mindful of competitive procedures for system replacement at the current systems end of life or technical obsolescence.